

SENATE BILL 1959

By Pody

AN ACT to amend Tennessee Code Annotated, Title 4 and  
Title 49, relative to Charlie Kirk memorials.

WHEREAS, the assassination of Charlie Kirk was a tragedy; and

WHEREAS, this General Assembly finds the media commentary and social media posts following Charlie Kirk's assassination condoning, and even applauding, the use of criminal violence against those with whom they disagree politically abhorrent; and

WHEREAS, one of the strengths of our Republic and a hallmark of American society has, heretofore, been the ability of our citizens to safely express differing points of view; and

WHEREAS, this concept of public expression is based upon the Roman Republic's idea of civis, a code of conduct related to "public life, befitting a citizen," from which we derive the word "civics," for the study of civil and political rights and obligations, as well as the word "civility," for formal politeness and courtesy in behavior or speech; and

WHEREAS, we must reinstate the relationship between civics and civility; and

WHEREAS, we must foster and inculcate a culture of public discourse and debate, especially the civil offering of dissenting opinions, and a free exchange of ideas; and

WHEREAS, we, as a State, should establish a climate in which ideas can be freely exchanged and debated in a civil and respectful manner; and

WHEREAS, our public institutions of higher education should model the responsible exercise of our constitutionally guaranteed rights and their lawful application to protect our agency as citizens to work within established systems to achieve desired outcomes; and

WHEREAS, leadership at all levels of our educational institutions and our government has clearly failed to instill these values and concepts in our citizens so that they can engage

with those with whom they disagree in a civil and respectful manner to advocate for political change without the use of intimidation or criminal violence; now, therefore,

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Title 49, Chapter 7, Part 1, is amended by adding the following as a new section:

(a) The board of regents, each state university board, and the board of trustees for the University of Tennessee system shall designate and maintain on the main campus of each public institution of higher education governed by the board, a courtyard to be known as the "Charlie Kirk Memorial Courtyard for Civil Debate" to remind students, faculty, staff, and visitors of the value of civil discourse and to encourage those who visit the courtyard to exchange differing ideas and opinions with civility and respect.

(b) A Charlie Kirk Memorial Courtyard for Civil Debate required in subsection (a) must:

(1) Measure forty feet (40') by forty feet (40') or any reasonable configuration of those dimensions so long as the total dimensions of the courtyard are no less than one thousand six hundred square feet (1,600 sq. ft.);

(2) Display the declaration of rights in Article I of the Tennessee Constitution in its entirety on the northern side of the courtyard;

(3) Display the Ten Commandments in their entirety on the southern side of the courtyard;

(4) Display the Bill of Rights in its entirety on the eastern side of the courtyard;

(5) Display the Declaration of Independence in its entirety on the western side of the courtyard; and

(6) Be installed on each campus as required in this section and open to students, faculty, staff, and visitors by December 31, 2026.

(c) Each display required in subdivisions (b)(2)-(5) must:

(1) Measure, at a minimum, twenty-four inches (24") by thirty-six inches (36") with a minimum thirty-six-point font size, and be installed so that the center of the display is no higher than five feet (5') above the ground;

(2) Include "Charlie Kirk Memorial Courtyard for Civil Debate" and "September 10, 2025" at the top or bottom of the display; and

(3) Be constructed in a manner and of materials designed to withstand the weather conditions of the area in which it is located.

(d) The board of regents, each state university board, and the board of trustees for the University of Tennessee system may receive and use gifts, donations, and grants of money, property, and services for purposes of designing, installing, and maintaining a Charlie Kirk Memorial Courtyard for Civil Debate.

SECTION 2. If any provision of this act or its application to any person or circumstance is held invalid, then the invalidity does not affect other provisions or applications of the act that can be given effect without the invalid provision or application, and to that end, the provisions of this act are severable.

SECTION 3. This act takes effect upon becoming a law, the public welfare requiring it.